

ONLYGIGZ

TERMS AND CONDITIONS

Effective Date: July 12, 2026

These Terms and Conditions (“Terms”) govern access to and use of the OnlyGigz Musician App, Organizer App, website, and related services (collectively, the “Platform”), operated by **ONLYGIGZ, LLC** (“OnlyGigz,” “we,” “us,” or “our”). By creating an account, browsing, or using the Platform, you (“User,” “you”) agree to be bound by these Terms. If you do not **agree**, do not use the Platform.

1. Definitions

- **Musician:** a performer who uses the Platform to build a profile, browse and apply to Gigs, get hired, and get paid.
- **Organizer (or Venue):** a business or individual who posts Gigs, reviews applicants, and hires Musicians through the Platform.
- **Gig:** a performance opportunity posted on the Platform, either directly by an Organizer or imported automatically by the Scraper Module from a public third-party source.
- **Booking:** a confirmed engagement between a Musician and an Organizer for a specific Gig.
- **Escrow:** the mechanism by which an Organizer's payment for a Booking is held by our payment processor before being released to the Musician.
- **Admin:** OnlyGigz personnel who operate the Admin Dashboard to manage Users, Gigs, disputes, documents, payments, and the Scraper Module.

2. Eligibility & Accounts

- You must be at least 18 years old and able to form a binding contract to use OnlyGigz.
- You must provide accurate, current information when registering and keep it up to date.
- You are responsible for all activity under your account and for keeping your login credentials secure.
- Organizers registering on behalf of a business represent that they have authority to bind that business.

Admin-created accounts: OnlyGigz Admins may manually create Musician or Organizer accounts — for example, to onboard an Organizer identified through a Gig imported by the Scraper Module — and issue temporary login credentials. If an account was created on your behalf, you can claim it, update its information, or request its deactivation by contacting us at admin@onlygigz.app. Using an Admin-created account, or continuing to use it after claiming it, means you agree to these Terms.

We may suspend or terminate accounts that provide false information, impersonate another person or business, or violate these Terms.

3. Gigs, Applications & Bookings

Gigs on the Platform come from two sources: (a) Organizers who post directly, and (b) the Scraper Module, which automatically imports publicly available Gig postings on a recurring schedule. Musicians apply to Gigs; Organizers review applicants and may shortlist or hire a Musician, which creates a Booking.

Once a Booking is confirmed, a direct engagement exists between the Musician and the Organizer on the agreed terms (date, fee, set length, etc.). OnlyGigz is a technology platform and payment facilitator, not a talent agency, employer, or party to that engagement, and is not responsible for either party's performance, conduct, or reliability.

4. Aggregated & Third-Party Gig Listings

Some Gigs displayed on OnlyGigz are aggregated from publicly available sources that OnlyGigz does not control and did not create. We run automated duplicate-detection and spam/fraud screening on aggregated listings, and Admin may review, edit, or remove flagged Gigs, but this screening is automated and cannot catch every problem.

- OnlyGigz does not guarantee that an aggregated Gig listing is accurate, current, legitimate, or still available.
- An Organizer name attached to an aggregated listing may not correspond to a registered OnlyGigz account until that person or business claims or is issued one.
- Applying to an aggregated Gig means you are reaching out based on publicly available information; use the same judgment you would applying to any listing found on the open web, and report suspected fraud or spam to us.
- OnlyGigz is not liable for losses arising from an aggregated listing that turns out to be inaccurate, outdated, or fraudulent.

5. Payments & Escrow

- **Processing:** All in-app payments are processed by Stripe, our third-party payment processor. OnlyGigz does not store full payment card numbers or bank account credentials — that data is held by Stripe under its own terms and privacy policy.
- **Escrow:** When an Organizer pays for a Booking, funds are held in escrow rather than paid to the Musician immediately. Escrowed funds are released to the Musician after the Gig is completed, subject to the release process described in-app (e.g., automatic release after a set number of days, or confirmation by the Organizer).
- **Disputed funds:** If a dispute is raised about a Booking before funds are released, Admin may place a hold on the escrowed funds while the dispute is reviewed, and may direct release, partial release, or refund based on the information available. OnlyGigz's decision on a disputed escrow release is made in good faith but is not a guarantee of any particular outcome.

Service Fees

OnlyGigz charges service fees and may offer optional paid features. Current pricing, commissions, subscription plans, and promotional fees are displayed within the Platform before purchase or booking confirmation. By completing a transaction, you agree to the pricing presented at that time. OnlyGigz reserves the right to modify pricing at any time. Changes do not apply retroactively to completed transactions.

6. Contracts & Electronic Signatures

Once a Booking is confirmed, the Platform automatically generates a Gig Contract reflecting the agreed terms. Both the Musician and the Organizer must review and electronically sign the contract before the Booking is finalized.

- By using the Platform's e-signature feature, you consent to conduct this transaction electronically and agree that your electronic signature has the same legal effect as a handwritten signature, consistent with applicable electronic signature laws (e.g., the U.S. E-SIGN Act and UETA where applicable).
- Signed contracts are stored securely and are accessible to you and to Admin for record-keeping, dispute resolution, and compliance purposes.
- OnlyGigz generates the contract template and facilitates signing but is not a party to the contract and does not provide legal advice on its terms; Users should review generated contracts before signing.

7. Document Uploads & Verification

Musicians may be required or choose to upload documents such as tax forms (e.g., 1099s), government-issued ID, and certifications to verify identity and support tax/compliance recordkeeping.

- You represent that any document you upload is authentic, unaltered, and belongs to you.
- Uploaded documents are encrypted and accessible only to Admin — they are not shown to Organizers or other Musicians.
- Documents are retained as needed for verification, tax reporting, and legal compliance, and may be deleted upon account closure subject to any legal retention requirements (e.g., tax recordkeeping rules).
- Uploading false or fraudulent documents is a violation of these Terms and grounds for immediate account termination.

8. Cancellations & Refunds

Cancellation terms should be agreed by the Musician and Organizer at the time of Booking, and the Gig Contract should reflect them. If no specific terms were set:

- Cancellations more than 14 days before the event date are eligible for a full refund of escrowed funds.
- Cancellations within 14 days of the event date may result in partial or no refund, at OnlyGigz's discretion based on information from both parties.
- OnlyGigz's service fee is non-refundable once a Booking payment has been processed, except where required by law.

9. Featured Profiles & Promotional Services

OnlyGigz may offer optional paid promotional services, including Featured Profile placement for both Entertainers and Organizers, to increase visibility within the Platform. Featured Profiles may receive enhanced exposure through benefits such as priority placement in search results, spotlight sections, premium profile badges, featured listings, or other promotional features as described within the Platform.

Featured Profile placements may be purchased for available promotional periods (such as 24 hours, 7 days, or 30 days), with current pricing, duration, and included benefits clearly displayed in the Platform at the time of purchase.

Purchasing a Featured Profile or other promotional service does not guarantee profile views, Gig applications, booking requests, bookings, inquiries, or any other specific results. Visibility may vary based on user activity, search criteria, location, and other factors. All promotional fees are non-refundable once the promotional period has begun, except where required by applicable law.

10. Reviews & Ratings

After a Booking is completed, Organizers may leave a star rating and written review of the Musician, and this is displayed on the Musician's profile.

- Reviews must be honest and based on an actual completed Booking — no fake, retaliatory, or defamatory reviews.
- OnlyGigz may moderate, and Admin may remove, reviews that violate these Terms, but has no obligation to mediate disagreements about a review's fairness.
- By submitting a review, you grant OnlyGigz a license to display it on the Platform for as long as the associated profile remains active.

11. User Content

Users may upload portfolio content (photos, video clips, audio samples), bios, availability, and other content (“User Content”). You retain ownership, but grant OnlyGigz a worldwide, royalty-free, non-exclusive license to host, display, and distribute it on the Platform and in OnlyGigz marketing (e.g., a Featured Artist spotlight) for as long as your account is active or the content remains posted. You represent that you own or have the rights to any content you upload and that it does not infringe any third party's rights.

12. Prohibited Conduct

- Circumventing the Platform to complete a Booking off-platform in order to avoid fees, once a connection was made through OnlyGigz.
- Uploading false, fraudulent, or altered documents (IDs, tax forms, certifications, contracts).
- Posting false or misleading Gig details, reviews, or availability.
- Harassment, discrimination, or abusive conduct toward other Users.
- Uploading content you don't have rights to, or that is unlawful, obscene, or infringing.
- Attempting to access another User's documents, payment information, or account.
- Attempting to extract, replicate, or reverse-engineer any algorithm, model, or automated process used by the Platform, including but not limited to matching, pricing, or fraud-detection logic.

13. Automated Recommendations

- The Platform's Matching Engine uses factors such as genre, location/distance, budget, experience, and availability to recommend Gigs to Musicians and surface candidates to Organizers. Matching results are generated through automated processing and may be updated or refined over time as the underlying models improve.
- These are recommendations, not guarantees. OnlyGigz does not warrant that any match, recommendation, or ranking will result in a successful application, hire, or Booking, and does not guarantee the accuracy, completeness, or suitability of any recommended match. Users remain solely responsible for evaluating any Gig, Musician, or Organizer before entering into a Booking, and OnlyGigz's Matching Engine does not constitute a background check, endorsement, or verification of any User's qualifications, reliability, or legitimacy.
- Users may have rights regarding automated decision-making and profiling under applicable law; see our Privacy Policy for details.

14. Intellectual Property

The OnlyGigz name, logo, app, and all associated software, design, and branding are the property of OnlyGigz and protected by intellectual property laws. These Terms do not grant you any rights to OnlyGigz's trademarks or brand assets except as needed to use the Platform normally.

15. Disclaimers

THE PLATFORM IS PROVIDED “AS IS” AND “AS AVAILABLE.” ONLYGIGZ DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. ONLYGIGZ DOES NOT GUARANTEE THE IDENTITY, QUALITY, SAFETY, OR RELIABILITY OF ANY MUSICIAN OR ORGANIZER, THE ACCURACY OF SCRAPED GIG LISTINGS, OR THAT ANY MATCH, APPLICATION, OR BOOKING WILL BE HONORED.

16. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, ONLYGIGZ AND ITS OFFICERS, EMPLOYEES, AND AGENTS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR ANY LOSS OF PROFITS OR REVENUE, ARISING FROM YOUR USE OF THE PLATFORM, ANY BOOKING, ANY SCRAPED GIG LISTING, OR ANY ESCROW OR CONTRACT DISPUTE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. ONLYGIGZ'S TOTAL LIABILITY FOR ANY CLAIM RELATING TO THE PLATFORM WILL NOT EXCEED THE GREATER OF (A) THE FEES YOU PAID TO ONLYGIGZ IN THE 6 MONTHS BEFORE THE CLAIM, OR (B) \$100.

17. Indemnification

You agree to indemnify and hold OnlyGigz harmless from any claims, damages, or expenses (including reasonable attorneys' fees) arising from your use of the Platform, your User Content, uploaded documents, a signed Gig Contract, your violation of these Terms, or a Booking or escrow dispute with another User.

18. Termination

You may delete your account at any time. OnlyGigz may suspend, deactivate, or terminate access to the Platform — including an Admin-created account — with or without notice, for violation of these Terms, suspected fraud, or to protect the safety or integrity of the Platform. Provisions that by their nature should survive termination (payments owed, document retention, indemnification, limitation of liability, dispute resolution) will survive.

19. Dispute Resolution & Governing Law

These Terms are governed by the laws of the State of Louisiana, without regard to conflict-of-law principles.

Binding Arbitration. Any dispute, claim, or controversy arising out of or relating to these Terms, the Platform, or any transaction facilitated through OnlyGigz — including disputes involving escrow payments, contract generation, e-signatures, fraud classification determinations, or aggregated listing data — shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules, conducted in [City, Louisiana — e.g., Lafayette or New Orleans], before a single arbitrator. Judgment on the arbitration award may be entered in any court of competent jurisdiction.

Class Action Waiver. All disputes must be brought in the parties' individual capacity, and not as a plaintiff or class member in any purported class, collective, or representative proceeding. The arbitrator may not consolidate more than one person's claims.

Carve-Outs. Notwithstanding the foregoing, either party may bring an individual action in small claims court, and OnlyGigz may seek injunctive or equitable relief in a court of competent jurisdiction to protect its intellectual property prevent platform misuse, or address fraud

20. Changes to These Terms

We may update these Terms from time to time. Material changes will be notified via the app or email. Continued use of the Platform after changes take effect constitutes acceptance.

21. General

- If any provision of these Terms is found unenforceable, the remaining provisions remain in effect.
- These Terms, together with the Privacy Policy, are the entire agreement between you and OnlyGigz regarding the Platform.
- You may not assign your rights under these Terms without OnlyGigz's consent; OnlyGigz may assign these Terms in connection with a merger, acquisition, or sale of assets.

22. Contact

Questions about these Terms can be sent to [*admin@onlygigz.app*](mailto:admin@onlygigz.app).
